

2006 SCC OnLine All 2304

In the High Court of Allahabad
 Court No. 10
 (BEFORE A.K. YOG AND V.C. MISRA, JJ.)

Om Prakash

Versus

Dakshinanchal Vidyut Vitran Nigam Ltd. and others

Civil Misc. Writ Petition No. 35303 of 2006

Decided on July 10, 2006

JUDGMENT

1. Heard learned counsel for the petitioner as well as the learned counsel representing contesting respondents. Perused the record of this petition.

2. Admittedly a surprise checking was done on 15.2.2006 and petitioner was suspected of committing theft of power. Checking report is also submitted (Annexure 1 to the Writ Petition). According to the petitioner he has also deposited a sum of Rs. 50,000/- by way of compounding. It is clear case of theft subject, however, to the decision of the competent authority if the same is challenged. Prima facie and at this stage petitioner cannot plead that it is not a case of theft. It may be stated that petitioner had approached this Court earlier by filing Writ Petition No. 19501 of 2006, *Om Prakash v. Dakshinanchal Vidyut Vitran Nigam Ltd. Agra*. Photostat copy of the judgment and order dated 10.5.2006 passed in the aforesaid Writ Petition shows that petitioner has withdrawn the said Writ Petition on the statement that he shall approach for alternative remedy provided under The Electricity Act, 2003 and Uttar Pradesh Electricity Code, 2005. The said judgment further shows that request of the petitioner for granting ad-interim injunction was refused. We have perused the provisions of the Electricity Act, 2003 as well as Uttar Pradesh Electricity Supply Code, 2005 (chapter 8). We find that relevant statute contains exhaustive scheme dealing with such cases.

3. Section 153, The Electricity Act, 2003 contemplates constitution of Special Courts which are empowered under Section 154 of the said Act to deal with the criminal as well as civil liability. If petitioner is aggrieved inspite of his objections not being favourably accepted by the authority adjudicating the issue, he can approach the Special Court for the same. Apparently by depositing compounding fee petitioner will be deemed to be acquitted of the offence of the theft as provided under Section 154 of the Act, 2003. However, it does not allow to escape civil

liability which has to be determined and adjudicated by Special Court if consumer is aggrieved.

4. In that view of the matter petitioner has an adequate alternative remedy.

5. Petition is, accordingly, dismissed in limine on the ground of alternative remedy.

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